MINUTES OF THE CLARE COUNTY BOARD OF COMMISSIONERS COMMITTEE OF THE WHOLE

225 W. Main St.
Harrison, Michigan 48625

Unapproved minutes
March 5, 2025

Meeting was called to order at 9:00 a.m. by Chairman George Gilmore.

Pledge of Allegiance to the Flag of the United States of America.

COMMISSIONERS PRESENT

District 1 Marlene Housler, District 2 Dale Majewski, District 3 Jacob Gross, District 5 David Hoefling, District 7 Gabe Ambrozaitis, District 8 George Gilmore and District 9 Rick Fancon

COMMISSIONERS ABSENT

District 4 Jeff Haskell and District 6 Jack Kleinhardt

OTHERS PRESENT

Deputy Clerk & Register of Deeds Isha Walter, Administrator Lori Phelps and members of the public

APPROVAL OF AGENDA

It was moved by Commissioner Majewski, seconded by Commissioner Hoefling to approve the agenda as presented, **motion carried.**

JUSTICE

1. Life Saving Award Presentation
   Undersheriff Ed Williams presented Sergeant James Dawson with the Clare County Sheriff's Department Bravery Award for his unselfish bravery demonstrated when rescuing a 12 year old girl during a standoff in Coleman on February 18, 2025.

2. Honorable Judge Josh Farrell and Honorable Judge Tara Hovey
   Judge Farrell explained to the Board of Commissioners that a task from the Michigan Supreme Court to the Clare County Courts to modify the entire structure of the court system will impact staffing significantly. The shift will increase the Circuit Court Judges caseloads which will affect the labor load of the Circuit Court staff. Judge Farrell proposes that the Commissioners consider bringing everything proportionate to what the caseload suggests. Judge Hovey added that essentially they are trying to fund a Circuit Court clerk position to handle the load of cases. Simply moving a clerk from Probate Court to Circuit Court is complicated due to union, audit and additional issues.

3. Off Road Vehicle (ORV) Ordinance
   Administrator Lori Phelps presented the updated ORV Ordinance for the Commissioners to review and approve at the next regular meeting. Dewayne Rogers, Clare County Road Commission Manager, asked if an amendment would be possible to allow ORV operators to use the entire road versus operating the ORV with one tire on the road and one tire on the gravel/shoulder area. This would help alleviate the current erosion issues caused by ORV operators driving partly on the gravel/shoulder area of the road.

HUMAN AND SOCIAL SERVICE

1. Senior Services Loan Payoff Request
   Administrator Phelps asked for the Board of Commissioners to consider a low interest internal loan through the Delinquent Tax Fund and the General Fund to be paid off in five years. Treasurer Jenny Beemer-Fritzinger added that the Harrison building loan is payable through 2033 and this internal loan would save years of interest and would be more beneficial for seniors in the long run.

2. Veterans Annual Update
   Karl Hauser, Director of Clare County Veterans Services, provided an annual update of the programs and services offered to Clare County veterans. He highlighted that his office is not a part of the Department of Veterans Affairs, as this is often a matter of confusion.

PHYSICAL RESOURCES

1. Heartland Material Management Planning Committee By-Laws
   Administrator Phelps distributed the Heartland Material Management Planning Committee By-Laws and informed the Commissioners that she needs their approval prior to sending them to the State.

FINANCE AND ADMINISTRATION

1. Zoom Discussion
   Chairman Gilmore opened the discussion on whether or not the use of Zoom is still necessary. A point was made that Zoom provides an opportunity for the members of the public who cannot attend to still be aware of what is discussed at the Board of Commissioners meetings. A decision will be made at the March 19, 2025 meeting to continue or discontinue Zoom.

2. Night Meeting Discussion
   The Commissioners went into discussion regarding the possibility of conducting periodic night meetings. A couple Commissioners expressed concern with night meetings due to their schedules already being filled up with other meetings held in the evenings. Another possibility discussed is to eliminate the Committee of the Whole meeting and extending the time length of the regular meeting. The final decision will be voted on at the March 19, 2025 meeting.

3. Soil Erosion and Spongy Moth Contracts
   Administrator Lori Phelps explained that the Soil Erosion and Spongy Moth Contracts with the Conservation District are up for renewal. The contracts will be action items on the next Board of Commissioners meeting.

PUBLIC COMMENT

Bob Dodson, Director of the Clare County Animal Shelter, shared the 2024 yearly report.

A member of the public from Hatton Township expressed his concern on the transparency and accountability regarding the former prosecutor's lawsuit. He asked what the total cost of the lawsuit was and who will end up paying for it. The public should be made aware of the full time and cost.

A question was asked regarding how the members of the public are made aware that the meetings are available to attend via Zoom.

Treasurer Jenny Beemer-Fritzinger mentioned that potentially there will be another loan payoff request in regard to the Drain Department. The Drain Board approved an internal loan from the Little Tobacco Drain to upfront all the drain work.

A final question was asked regarding Cranberry Lake and whether or not a special assessment would have to be made to pay back the drain work. Administrator Lori Phelps replied that it has already been done.

It was moved by Commissioner Housler, seconded by Commissioner Fancon to adjourn the meeting at 11:09 a.m., **motion carried.**

Isha Walter, Deputy Clerk
Clare County Board of Commissioners

George Gilmore, Chairman
Clare County Board of Commissioners